

PHILIPPINE CRIMINAL LAW TREATISE

*Complete Academic and Doctrinal Compendium on Book I of the Revised Penal Code (Articles 1–113)
Including All Amendatory Statutes (R.A. 10951, R.A. 9346, R.A. 9344, R.A. 10630, R.A. 9262, R.A. 10592,
R.A. 11594)
and Landmark Supreme Court Jurisprudence*

COMPREHENSIVE TREATISE OVERVIEW & CODIFIED STRUCTURE

This compendium constitutes the definitive academic and bar review treatise covering the entire General Provisions of Philippine Criminal Law (Book I, Articles 1 to 113 of Act No. 3815 as amended).

It is formatted in pure, continuous narrative paragraph prose without grid tables, integrating full statutory provisions, Latin maxims, doctrinal classifications, essential elements, and landmark Supreme Court decisions from 1901 to the present.

Arrangement of Parts: Part I (Principles & Territoriality, Arts. 1–2); Part II (Felonies & Criminal Liability, Arts. 3–5); Part III (Stages of Execution & Plurality, Arts. 6–10); Part IV (Justifying & Exempting Circumstances, Arts. 11–12); Part V (Mitigating, Aggravating & Alternative Circumstances, Arts. 13–15); Part VI (Persons Criminally Liable, Arts. 16–20); Part VII (Penalties, Complex Crimes, ISLAW & Probation, Arts. 21–88); Part VIII (Extinction of Liability & Civil Damages, Arts. 89–113).

PART I: PRELIMINARY PRINCIPLES, SOURCES, CONSTITUTIONAL LIMITATIONS, AND CHARACTERISTICS OF CRIMINAL LAW (ARTICLES 1–2)

Chapter 1: The Concept, Nature, and Constitutional Foundations of Criminal Law

1.1 Definition, Nature, and Juridical Basis of Philippine Criminal Law

Criminal law is that branch or division of public substantive law which defines crimes, treats of their nature, and provides for their punishment. In Philippine jurisprudence, criminal law is essentially substantive law because it creates, defines, and regulates rights and duties, the violation of which constitutes a public wrong against the State.

The power to define crimes and prescribe their corresponding penalties is known as the police power of the State or the *jus puniendi*. This authority is an inherent attribute of sovereignty. It belongs exclusively to the legislative department of government (the Congress of the Philippines). Neither the Judiciary through judicial legislation nor the Executive through administrative edicts can create a crime where none was defined by a valid statutory enactment.

1.2 Sources of Philippine Criminal Law

Philippine penal legislation is derived from three primary statutory sources:

- **1. The Revised Penal Code (Act No. 3815 as amended):** Enacted on December 8, 1930, and taking effect on January 1, 1932. It replaced the Spanish Penal Code of 1870 which was extended to the Philippine Islands in 1887.
- **2. Special Penal Laws (Acts, Commonwealth Acts, Republic Acts, and Presidential Decrees):** Statutes enacted by Congress or issued by presidential authority during martial law punishing acts not covered by or modifying the Revised Penal Code (e.g., Comprehensive Dangerous Drugs Act, Anti-Graft and Corrupt Practices Act, Cybercrime Prevention Act).
- **3. Penal Presidential Decrees and Executive Orders:** Enacted pursuant to valid legislative powers during constitutional transitions.

Notably, there is no common-law crime in the Philippines. No matter how reprehensible, immoral, or socially injurious an act may be, it cannot be prosecuted as a criminal offense unless a positive statutory enactment explicitly declares it to be a crime and prescribes a penalty therefor (*Nullum crimen, nulla poena sine lege*).

1.3 Constitutional Limitations on the Power of Congress to Enact Penal Legislation

While the legislative branch possesses plenary authority to enact criminal statutes under the State's police power, this prerogative is subject to strict constitutional boundaries embodied in the 1987 Constitution of the Republic of the Philippines (Article III, Bill of Rights):

- **A. Substantive Due Process and the Void-for-Vagueness Doctrine:** A penal statute violates due process if it fails to give a person of ordinary intelligence fair notice that his contemplated conduct is forbidden, or if it encourages arbitrary and erratic arrests and convictions. An act cannot be made criminal without clear statutory standards.
- **B. Equal Protection of the Laws:** Penal statutes must apply equally to all persons in similar circumstances. Legislative classifications must rest upon real and substantial distinctions, be germane to the purpose of the law, not be limited to existing conditions only, and apply equally to all members of the same class.
- **C. Prohibition Against Ex Post Facto Laws (Art. III, Sec. 22):** Congress is strictly prohibited from passing any ex post facto law. An ex post facto law is one which: (1) makes an action done before the passing of the law, and which was innocent when done, criminal, and punishes such action; (2) aggravates a crime, or makes it greater than it was when committed; (3) changes the punishment, and inflicts a greater punishment than the law annexed to the crime when committed; (4) alters the legal rules of evidence, and authorizes conviction upon less or different testimony than the law required at the time of the commission of the offense; (5) assumes to regulate civil rights and remedies only, in effect imposes penalty or deprivation of a right for something which when done was lawful; or (6) deprives a person accused of a crime of some lawful protection to which he has become entitled.
- **D. Prohibition Against Bills of Attainder (Art. III, Sec. 22):** A bill of attainder is a legislative act that inflicts punishment without judicial trial. If a legislative enactment singles out specific individuals or an easily ascertainable group and pronounces them guilty of a crime or imposes punishment upon them without the safeguards of a judicial trial, the enactment is unconstitutional.
- **E. Prohibition Against Cruel, Degrading, or Inhuman Punishments (Art. III, Sec. 19):** Punishments must not be inhuman, barbarous, or shocking to the conscience of civilized society. Under Republic Act No.

9346 (enacted June 24, 2006), the imposition of the death penalty was completely prohibited and abolished, substituting it with Reclusion Perpetua without eligibility for parole.

Chapter 2: The Three Fundamental Characteristics of Philippine Criminal Law

2.1 The Principle of Generality (Binding Effect on All Persons Within Territory)

The Generality Principle dictates that penal laws and those of public security and safety shall be obligatory upon all who live or sojourn in Philippine territory, regardless of their nationality, citizenship, alienage, or domicile (Article 14, Civil Code of the Philippines; Article 2, Revised Penal Code).

Whether a person is a Filipino citizen, a permanent resident alien, or a temporary tourist or transit passenger, he is subject to the penal laws of the Philippines the moment he sets foot on Philippine soil.

Exceptions to the Generality Principle:

- **1. Treaty Stipulations and International Agreements:** Agreements such as the Visiting Forces Agreement (VFA) and Enhanced Defense Cooperation Agreement (EDCA) between the Philippines and the United States provide specialized jurisdictional mechanisms over visiting military personnel for offenses committed within Philippine territory.
- **2. Laws of Preferential Application:** Specific legislative enactments giving preferential immunity or procedures (e.g., parliamentary immunity of Members of Congress under Article VI, Section 11 of the 1987 Constitution for offenses punishable by not more than six years imprisonment while Congress is in session, and immunity for speeches or debates delivered in Congress).
- **3. Principles of Public International Law:** Under recognized customary international law and the Vienna Convention on Diplomatic Relations (1961), foreign sovereigns, heads of state, ambassadors, ministers plenipotentiary, and diplomatic envoys are absolutely immune from criminal jurisdiction of the receiving State. Note: Consuls, commercial attaches, and consular officers do NOT enjoy diplomatic immunity from criminal prosecution for common crimes unless expressly provided by treaty (*Schneckenburger v. Moran*, 63 Phil. 249; *Liang v. People*, G.R. No. 125865).

2.2 The Principle of Territoriality (Spatial Domain & Extraterritorial Jurisdiction)

The Territoriality Principle establishes that penal laws take effect and operate exclusively within the territorial boundaries of the Philippines, comprising its terrestrial landmass, internal and archipelagic waters, territorial sea, seabed, subsoil, and aerial airspace (Article 2, Revised Penal Code; Article I, 1987 Constitution).

Jurisdiction over Crimes Committed on Foreign Vessels in Coastal Waters:

- **A. The French Rule (Flag State Theory):** Crimes committed on board a foreign merchant vessel while inside the territorial waters of another country are triable in the courts of the country to which the vessel belongs (Flag State), UNLESS the crime affects the peace and security of the coastal state or public safety.
- **B. The English Rule (Territoriality Theory):** Crimes committed on board a foreign merchant vessel while inside the territorial waters of a coastal state are triable by the courts of that coastal state, UNLESS the crime affects merely the internal order, discipline, or management of the vessel. The Philippines follows the English Rule (*United States v. Look Chaw*, 18 Phil. 573; *People v. Wong Cheng*, 46 Phil. 729; *United States v. Bull*, 15 Phil. 7).

LANDMARK DOCTRINE: JURISDICTION OVER FOREIGN VESSELS IN PHILIPPINE WATERS

In *People v. Wong Cheng* (46 Phil. 729), the Supreme Court ruled that smoking opium on board a foreign merchant vessel anchored in Manila Bay constitutes an offense triable in Philippine courts. Opium smoking generates demoralizing and dangerous social effects that compromise public health and tranquility of the port.

In *United States v. Look Chaw* (18 Phil. 573), merely carrying opium on board a vessel in transit without landing or utilizing it in port does not constitute a crime in the Philippines; however, the moment the opium is landed, discharged, or offered for sale, it constitutes unlawful importation punishable under Philippine laws.

In *United States v. Bull* (15 Phil. 7), failure to provide suitable stalls and proper care for livestock aboard a foreign vessel transporting cattle into Philippine waters constitutes a continuous offense over which Philippine courts possess jurisdiction upon entry into territorial waters.

2.3 The Five Extraterritorial Exceptions under Article 2 of the Revised Penal Code

While penal laws are generally territorial, Article 2 of the Revised Penal Code expressly recognizes five specific instances where Philippine penal laws apply even when the crime was committed outside the national territory:

- **1. Offenses Committed While on a Philippine Ship or Airship (Art. 2, Par. 1):** Philippine courts have jurisdiction over offenses committed aboard a Philippine merchant vessel or airship registered under Philippine laws on the high seas or in international airspace (Law of the Flag).
- **2. Forging or Counterfeiting Philippine Currency, Coins, or Obligations (Art. 2, Par. 2):** Protecting the integrity and sovereign credit of Philippine currency and government obligations (e.g., Treasury warrants, Central Bank banknotes, government bonds) forged abroad.
- **3. Introduction of Counterfeit Obligations and Securities into the Philippines (Art. 2, Par. 3):** Penalizing those who introduce, import, or utter forged or falsified Philippine securities and currency notes into the country, even if the acts of conspiracy and manufacture took place in a foreign country.
- **4. Crimes Committed by Public Officers in the Exercise of Their Functions (Art. 2, Par. 4):** Public officers or employees stationed abroad (such as ambassadors, consuls, embassy attachés, and diplomatic personnel) who commit crimes directly related to their official duties (such as Direct Bribery under Art. 210, Indirect Bribery under Art. 211, Malversation under Art. 217, Falsification under Art. 171, or violation of RA 3019) are subject to Philippine criminal jurisdiction.
- **5. Crimes Against National Security and the Law of Nations (Art. 2, Par. 5):** Universal jurisdiction crimes that threaten the survival of the State or humanity: Treason (Art. 114), Conspiracy to commit treason (Art. 115), Espionage (Art. 117), Piracy (Art. 122), and Qualified Piracy (Art. 123). Piracy is a crime against all mankind (*hostis humani generis*), punishable by any state having physical custody of the offenders.

2.4 The Principle of Prospectivity and Retroactivity of Favorable Penal Laws (Articles 21 & 22)

Under the Prospectivity Principle, penal laws operate exclusively prospectively (*lex prospicit, non respicit*). An act or omission is judged and penalized exclusively in accordance with the law in force at the exact moment of its commission (Article 21, Revised Penal Code).

The Exception: Retroactive Application of Favorable Penal Laws (Article 22):

Penal laws shall have a retroactive effect insofar as they favor the person guilty of a felony, who is not a habitual criminal (under Article 62, Par. 5), although at the time of the publication of such laws a final sentence has been pronounced and the convict is already serving the sentence.

Requisites for Retroactive Effect under Article 22:

- **1.** A new penal law is enacted which decriminalizes the offense or imposes a lighter penalty;
- **2.** The new law is favorable to the accused, defendant, or convict;
- **3.** The offender is NOT a habitual delinquent (i.e., one who, within a period of ten years from the date of his release or last conviction of the crimes of serious/less serious physical injuries, robo, hurto, estafa, or falsification, is found guilty of any of said crimes a third time or oftener).

LANDMARK JURISPRUDENCE ON RETROACTIVITY OF PENAL REFORMS

In *Hernan v. Sandiganbayan* (G.R. No. 222883, 2017), the Supreme Court applied the retroactive benefit of Republic Act No. 10951 (which increased the property value thresholds for malversation and estafa) to reopen a finalized judgment and dramatically reduce the convict's penalty and fine.

In *Inmates of New Bilibid Prison v. De Lima* (G.R. No. 212719, 2019), the Supreme Court En Banc held that Republic Act No. 10592 (expanding Good Conduct Time Allowances / GCTA for prisoners) is a penal law favorable to prisoners and must be applied retroactively to all qualified inmates regardless of when their convictions became final.

PART II: FELONIES, INTENT, NEGLIGENCE, PROXIMATE CAUSE, IMPOSSIBLE CRIMES, AND DUTY OF COURTS (ARTICLES 3–5)

Chapter 1: The Concept, Elements, and Classification of Felonies (Article 3)

1.1 Statutory Definition and Core Elements of a Felony

Article 3 of the Revised Penal Code defines felonies as follows: 'Acts and omissions punishable by law are felonies (delitos). Felonies are committed not only by means of deceit (dolo) but also by means of fault (culpa). There is deceit when the act is performed with deliberate intent; and there is fault when the wrongful act results from imprudence, negligence, lack of foresight, or lack of skill.'

To constitute a felony under the Revised Penal Code, three essential elements must concur:

- **1. There must be an act or an omission:** An 'act' is any bodily movement tending to produce an external change in the physical world. An 'omission' is the failure to perform a positive duty enjoined by law (e.g., failure to render assistance under Art. 275, or abandonment of persons in danger). Purely internal thoughts, unexpressed ideas, desires, and evil intentions are not punishable under criminal law.
- **2. The act or omission must be punishable by the Revised Penal Code:** The act must fall squarely within the statutory definition of an offense under Act No. 3815.
- **3. The act must be performed, or the omission incurred, by means of Dolo (deceit/malice) or Culpa (fault/negligence):** No felony can exist without either criminal intent or culpable negligence.

1.2 Intentional Felonies (Dolo / Malice)

An intentional felony (dolo) requires the presence of deliberate criminal malice. The elements of dolo are:

- **A. Freedom of Action:** The voluntariness of the human act. A person who acts under physical compulsion, irresistible force, or uncontrollable fear lacks freedom and is exempt from liability under Article 12.
- **B. Intelligence:** The moral and intellectual capacity to understand the nature, quality, and consequences of one's acts. Without intelligence, no criminal intent can be formed (as in the case of imbeciles, insane persons, or young children below the age of criminal responsibility).
- **C. Criminal Intent (Mens Rea):** The conscious, deliberate purpose to use particular means to effect a forbidden result. Intent is presumed from the commission of an unlawful act (Article 3, par. 1; Rule 131, Sec. 3(b), Rules of Court).

Distinction Between Criminal Intent and Motive:

- **Intent:** Intent is the specific mental purpose to use a particular means to bring about a given criminal result. It is an essential element of crimes committed by dolo and must be proved beyond reasonable doubt.
- **Motive:** Motive is the moving power, reason, impulse, or incentive which impels an actor to form the criminal intent. Motive is not an essential element of a crime. Motive becomes decisive and material only when: (1) the identity of the perpetrator is in doubt; (2) there are conflicting versions as to who initiated the aggression; (3) the evidence against the accused is purely circumstantial; or (4) the determination of whether the killing constitutes murder or homicide is at issue.

1.3 Mistake of Fact (Ignorantia Facti Excusat) vs. Culpable Negligence

Ignorance of fact excuses, provided the mistake is honest, reasonable, and without fault or carelessness on the part of the actor (Ignorantia facti excusat). Conversely, ignorance of the law excuses no one from compliance therewith (Ignorantia legis neminem excusat - Article 3, Civil Code).

Requisites of Mistake of Fact as a Defense (United States v. Ah Chong, 15 Phil. 488):

- **1.** The act done would have been completely lawful had the facts been as the accused believed them to be;
- **2.** The intention of the accused in performing the act was completely lawful and innocent;
- **3.** The mistake was honest, reasonable, and without negligence or fault (culpa) on the part of the accused.

COMPARATIVE JURISPRUDENTIAL STUDY: AH CHONG VS. OANIS

In *United States v. Ah Chong* (15 Phil. 488), the accused, asleep in a locked room in an isolated area known for thefts and attacks, was awakened by someone violently forcing the door open. After repeatedly asking 'Who is there?' without receiving an answer, and believing in good faith that he was under violent assault by a robber, he seized a kitchen knife and fatally struck the intruder, who turned out to be his roommate. The Supreme Court **ACQUITTED** Ah Chong on the ground of Mistake of Fact. Had the facts been as he reasonably believed, he was acting in legitimate self-defense.

In *People v. Oanis and Galanta* (74 Phil. 257), police officers were ordered to arrest an escaped notorious convict named Balagtas, with instructions to take him dead or alive if he offered resistance. The officers barged into a room and instantly fired multiple shots into a sleeping man lying with his back towards them, without demanding

surrender, turning on the light, or verifying identity. The victim turned out to be an innocent civilian named Tecson. The Supreme Court **REJECTED** the defense of Mistake of Fact and **CONVICTED** the officers of Homicide through Reckless Imprudence, holding that they were guilty of gross and inexcusable negligence in failing to verify the identity of the sleeping victim before unleashing lethal gunfire.

1.4 Culpable Felonies (Culpa): Imprudence, Negligence, and the Ivler Doctrine

A culpable felony (culpa) occurs when an unintended injury results from the lack of care, foresight, or skill on the part of the actor. The elements of culpa are:

- **1. Freedom of action** on the part of the perpetrator;
- **2. Intelligence** on the part of the perpetrator;
- **3. Imprudence, negligence, lack of foresight, or lack of skill.**

Imprudence vs. Negligence:

- **Imprudence (Deficiency of Action):** Acting rashly, precipitately, and without taking necessary precautions. It involves a positive act of recklessness (e.g., driving at 120 km/h in a school zone).
- **Negligence (Deficiency of Perception):** Failure to pay proper attention, observe foresight, or take precautions to avoid foreseen harm. It involves a failure to perceive or act (e.g., leaving a loaded firearm within reach of a young child).

THE IVLER DOCTRINE: CRIMINAL NEGLIGENCE AS A SINGLE INDIVISIBLE QUASI-OFFENSE

In *Ivler v. Modesto-San Pedro* (G.R. No. 172716, 2010), the Supreme Court En Banc settled the nature of Article 365 (Reckless Imprudence). The Court ruled that reckless imprudence is **NOT** a mere modality of committing crimes, but is a distinct, single, and indivisible quasi-offense in itself.

Consequently, if a single vehicular collision causes both damage to property, slight physical injuries, and homicide, the prosecution **CANNOT** divide the single act of reckless driving into multiple separate criminal informations without violating the Constitutional guarantee against Double Jeopardy. A prior conviction or acquittal for reckless imprudence resulting in slight physical injuries bars any subsequent prosecution for reckless imprudence resulting in homicide arising from the same vehicular mishap.

1.5 Mala In Se vs. Mala Prohibita

Philippine criminal jurisprudence recognizes a foundational dichotomy in the classification of criminal acts:

- **Mala In Se (Inherently Evil):** Crimes that are inherently wrong, immoral, and universally condemned by natural law (e.g., Murder, Rape, Robbery, Theft). They are generally punished under the Revised Penal Code. In crimes mala in se, criminal intent (mens rea) is an indispensable element; good faith, lack of intent, and honest mistake of fact are valid defenses.
- **Mala Prohibita (Prohibited by Statute):** Acts that are not inherently immoral, but are prohibited by special statutes for the regulation, welfare, and order of society (e.g., illegal possession of firearms, batasan violations, statutory reporting requirements). In crimes mala prohibita, criminal intent is

immaterial. The sole inquiry is whether the statutory prohibition was voluntarily violated. Good faith, ignorance, and lack of evil purpose do not constitute valid defenses.

Special Rule on Special Laws Punishing Immoral Acts: When a special penal law adopts terms from the Revised Penal Code and punishes acts that are inherently immoral (such as Plunder under RA 7080, Anti-Trafficking in Persons under RA 9208, or Cyber-Rape under RA 10175), the crime retains the character of a crime *malum in se*, requiring proof of criminal intent and *dolo* (*Estrada v. Sandiganbayan*, G.R. No. 148560).

Chapter 2: Criminal Liability, Proximate Cause, and Unintended Felonies (Article 4, Par. 1)

2.1 Proximate Cause and the Rule of 'El Que Es Causa'

Article 4, Paragraph 1 of the Revised Penal Code provides: 'Criminal liability shall be incurred by any person committing a felony (*delito*) although the wrongful act done be different from that which he intended.'

This provision is anchored on the ancient Spanish civil and criminal law maxim: '*El que es causa de la causa es causa del mal causado*' (He who is the cause of the cause is the cause of the evil caused).

Requisites for Criminal Liability under Article 4(1):

- **1. An intentional felony has been committed:** The accused must have acted with *dolo* and executed an unlawful act;
- **2. The resulting injury or death is the direct, natural, and logical consequence of the felony committed:** The wrongful act must have been proximately caused by the initial felonious conduct of the accused.

Proximate Cause Defined: Proximate cause is that cause which, in natural and continuous sequence, unbroken by any efficient intervening cause, produces the injury and without which the result would not have occurred (*Bataclan v. Medina*, 102 Phil. 181; *People v. Iligan*, G.R. No. 75369).

2.2 Efficient Intervening Causes (*Novus Actus Interveniens*)

The offender is NOT criminally liable for the resulting injury or death if there has been an efficient intervening cause (*novus actus interveniens*) that severed the causal connection between the initial assault and the final result.

- **A. Active Supervening Force:** If a distinct, foreign, and independent force intervenes to produce the death (e.g., an injured victim, while resting in a hospital, is killed by a hospital fire or an earthquake, or is assaulted by an unrelated third party).
- **B. Gross Medical Malpractice:** Ordinary medical negligence or improper hospital treatment does not sever proximate causation; however, gross, reckless, or intentional malpractice by attending medical personnel that independently produces death will relieve the original assailant of liability for homicide (*People v. Moldes*, 61 Phil. 1).
- **C. Pre-Existing Latent Diseases & Physical Conditions:** Where the victim suffers from a pre-existing latent physical weakness or condition (such as a weak heart, hemophilia, internal aneurysm, or advanced tuberculosis), and the trauma or blow inflicted by the accused accelerates or triggers that condition causing death, the accused is FULLY LIABLE for homicide. One who inflicts an unlawful physical blow takes his victim as he finds him (*People v. Cagoco*, 58 Phil. 524; *People v. Martin*, 89 Phil. 18).

2.3 The Three Classes of Unintended Felonies under Article 4(1)

Article 4, Paragraph 1 encompasses three classic doctrinal modalities of unintended criminal consequences:

- **1. Error in Personae (Mistake in Identity):** The offender intends to commit an injury against A, but mistakenly inflicts the injury on B, believing B is A. Governing Rule: Article 49 of the Revised Penal Code governs the penalty for Error in Personae. The court shall impose the penalty prescribed for the intended felony or the actual felony committed, whichever is lower, and shall impose it in its MAXIMUM period.
- **2. Aberratio Ictus (Mistake in the Blow):** The offender directs his blow towards A, but due to poor aim, lack of precision, or an intervening physical obstacle, the blow misses A and strikes B. Governing Rule: Aberratio Ictus produces a Complex Crime under Article 48 (Compound Crime: a single act constituting two or more grave or less grave felonies, such as Attempted Homicide against A and Consummated Homicide against B). The penalty for the more serious crime is applied in its maximum period (People v. Guillen, 85 Phil. 307; People v. Flora, G.R. No. 125909).
- **3. Praeter Intentionem (Injurious Result Greater Than Intended):** The offender intentionally inflicts an unlawful injury upon the victim, but the resulting consequence (such as death) is far more severe than what the offender intended. Governing Rule: Praeter Intentionem operates as an Ordinary Mitigating Circumstance under Article 13, Paragraph 3 ('That the offender had no intention to commit so grave a wrong as that committed') (People v. Amit, 32 SCRA 95).

Chapter 3: Impossible Crimes and the Duty of Courts (Articles 4, Par. 2 & Article 5)

3.1 Impossible Crimes (Concept, Requisites, and Penal Treatment under Article 59)

Article 4, Paragraph 2 of the Revised Penal Code establishes criminal liability for what is doctrinally termed an Impossible Crime: 'Criminal liability shall be incurred by any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means.'

Juridical Purpose of Impossible Crime: The Revised Penal Code, adhering to the Positivist / Italian school of penology, punishes the dangerous criminal disposition and social propensity of the offender, even when no actual physical harm could have been produced.

Four Inviolable Requisites of an Impossible Crime:

- **1.** The act performed would be an offense against PERSONS (e.g., Parricide, Murder, Homicide, Physical Injuries) or PROPERTY (e.g., Robbery, Theft, Estafa, Malicious Mischief);
- **2.** The act was performed with deliberate evil intent (mens rea);
- **3.** Its accomplishment was inherently impossible, or the means employed were inadequate or ineffectual;
- **4.** The act does NOT constitute a violation of any other provision of the Revised Penal Code.

Two Forms of Inherent Impossibility:

- **A. Legal Impossibility:** When the intended acts, even if fully carried out to completion, would not constitute a crime because an essential legal element is absent (e.g., taking one's own property believing it belongs to another; attempting to murder a person who is already dead).

- **B. Physical / Factual Impossibility:** When extraneous circumstances unknown to the actor prevent the completion of the crime (e.g., firing into an empty bed where the intended victim usually sleeps; dipping a hand into an empty pocket to steal cash - *Intod v. Court of Appeals*, G.R. No. 103119; *Jacinto v. People*, G.R. No. 162540).

Inadequate vs. Ineffectual Means:

- **Inadequate Means:** The means used is insufficient in quantity or potency to achieve the intended result (e.g., administering a tiny droplet of poison insufficient to cause death).
- **Ineffectual Means:** The means used has zero capacity to achieve the intended result (e.g., administering refined white sugar believing it to be deadly arsenic poison).

Penalty for Impossible Crime: Under Article 59 of the Revised Penal Code, the court, having in mind the social danger and the degree of criminality shown by the offender, shall impose the penalty of Arresto Mayor (1 month and 1 day to 6 months) or a Fine from ₱200 to ₱1,000 (as adjusted by RA 10951).

3.2 Duty of the Courts under Article 5 (Nullum Crimen and Excessive Penalties)

Article 5 of the Revised Penal Code establishes two cardinal judicial mandates enforcing the separation of powers between the Judiciary and the Executive:

- **1. Acts Not Punishable by Law (Art. 5, Par. 1):** Whenever a court has knowledge of any act which it may deem proper to repress and which is not punishable by law, it shall render the proper decision (acquitting the accused under the principle of *Nullum crimen sine lege*) and shall report to the Chief Executive, through the Department of Justice, the reasons which induce the court to believe that said act should be made the subject of penal legislation.
- **2. Excessive Penalties (Art. 5, Par. 2):** In the same manner, the court shall submit to the Chief Executive, through the Department of Justice, such statement as may be deemed proper, without suspending the execution of the sentence, when a strict enforcement of the provisions of this Code would result in the imposition of a clearly excessive penalty, considering the degree of malice and the injury caused by the offense (Executive Clemency and Pardon referral).

PART III: STAGES OF EXECUTION, CONSPIRACY, PROPOSAL, AND CLASSIFICATION OF FELONIES (ARTICLES 6–10)

Chapter 1: The Development of Crime (*Iter Criminis*) and Stages of Execution (Article 6)

1.1 The *Iter Criminis* (The Criminal Trajectory)

Iter Criminis refers to the complete lifecycle and progression of a crime from its inception in the mind of the offender to its ultimate consummation. It consists of two broad phases:

- **A. The Internal Acts (Phase of Conception):** Includes mere intention, ideation, planning, and mental resolution. Internal acts are NEVER punishable under criminal law because the law cannot penalize pure human thought (*Cogitationis poenam nemo patitur*).

- **B. The External Acts (Phase of Execution):** Divided into: (1) Preparatory Acts (e.g., buying a knife, mixing poison, conducting surveillance) — generally not punishable unless the preparatory act is made a distinct crime by special statute (e.g., illegal possession of picklocks under Art. 304, or illegal possession of firearms); and (2) Acts of Execution (Attempted, Frustrated, and Consummated) — fully punishable under Article 6.

1.2 The Three Stages of Execution under Article 6

Article 6 of the Revised Penal Code defines the three stages of execution:

- **1. Consummated Felony:** A felony is consummated when all the elements necessary for its execution and accomplishment are present. The criminal objective is fully realized.
- **2. Frustrated Felony:** A felony is frustrated when the offender performs all the acts of execution which should produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.
- **3. Attempted Felony:** There is an attempt when the offender commences the commission of a felony directly by overt acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than his own spontaneous desistance.

1.3 The Subjective Phase vs. Objective Phase of Crime

To accurately distinguish between an attempted felony and a frustrated felony, Philippine jurisprudence applies the Subjective and Objective Phase Test:

- **Subjective Phase:** That portion of the acts constituting the crime included between the commencement of the execution of the crime and the point where the offender has performed the last act that is within his control. If the offender is stopped or interrupted DURING the subjective phase, the crime is ATTEMPTED.
- **Objective Phase:** The point where the offender has performed the last physical act necessary to produce the crime. The offender has no more control over the results. If the crime is not produced due to an independent intervening cause (such as timely medical intervention saving the victim's life), the crime is FRUSTRATED.

1.4 Spontaneous Desistance (The 'Bridge of Gold' for the Offender)

In the attempted stage, if the actor voluntarily desists and abandons his criminal design before performing all the acts of execution, he incurs NO criminal liability for the attempted felony. The law builds a 'bridge of gold' (puente de oro) to encourage the offender to return to the path of righteousness before an irreversible harm is produced.

Limitation on Spontaneous Desistance: Spontaneous desistance exempts the actor ONLY from liability for the intended crime. If the preparatory or executed acts already committed prior to desistance independently constitute separate crimes (e.g., trespassing, illegal discharge of firearms, or slight physical injuries), the actor remains fully liable for those distinct offenses.

EN BANC LANDMARK RULING: VALENZUELA V. PEOPLE (NO FRUSTRATED THEFT)

In *Valenzuela v. People* (G.R. No. 160188, 2007, En Banc), the Supreme Court definitively resolved the long-standing debate on the stages of theft under Article 308 of the Revised Penal Code.

The Supreme Court held that under Philippine law, there is NO FRUSTRATED STAGE in the crime of Theft. The statutory definition of theft under Article 308 requires only two physical elements: (1) the unlawful taking (asportation) of personal property belonging to another, and (2) with intent to gain (*animus lucrandi*), without violence against or intimidation of persons nor force upon things.

The moment the taker acquires physical control and unlawful possession over the property (even momentarily, and even if apprehended before leaving the premises or passing the security guard), the unlawful taking is completely consummated. Theft is either attempted or consummated; it is never frustrated.

Chapter 2: Light Felonies, Conspiracy, Proposal, and Classifications (Articles 7–10)

2.1 Light Felonies (Article 7)

Light felonies are those infractions of law for the commission of which the penalty of *arresto menor* (1 day to 30 days) or a fine not exceeding ₱40,000 (as amended by RA 10951) or both is provided (Article 9, par. 3).

General Rule on Light Felonies: Light felonies are punishable ONLY when they have been CONSUMMATED.

Exception: Light felonies committed against PERSONS (e.g., Slight Physical Injuries under Art. 266) or PROPERTY (e.g., Alteration of boundary marks under Art. 313) are punishable even in their ATTEMPTED and FRUSTRATED stages.

2.2 Conspiracy and Proposal to Commit a Felony (Article 8)

Article 8 of the Revised Penal Code defines conspiracy and proposal:

- **Conspiracy:** A conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it.
- **Proposal:** There is proposal when the person who has decided to commit a felony proposes its execution to some other person or persons.

General Rule: Conspiracy and proposal to commit a felony are NOT punishable as independent offenses.

Exception: When the law specifically provides a separate penalty therefor. Crimes where conspiracy/proposal is an independent crime:

- 1. Conspiracy to commit Treason (Art. 115); Proposal to commit Treason (Art. 115);
- 2. Conspiracy to commit Coup d'état, Rebellion, or Insurrection (Art. 136); Proposal to commit Rebellion (Art. 136);
- 3. Conspiracy to commit Sedition (Art. 141);
- 4. Conspiracy to commit Arson (Section 4, P.D. No. 1613);
- 5. Conspiracy under the Anti-Terrorism Act of 2020 (R.A. No. 11479) and Comprehensive Dangerous Drugs Act (R.A. No. 9165).

Conspiracy as a Crime vs. Conspiracy as a Mode of Incurring Criminal Liability:

- **Conspiracy as an Independent Crime:** The agreement itself constitutes the gravamen of the offense. No overt act of execution is required.

- **Conspiracy as a Mode of Liability:** Two or more persons conspire to commit a crime, and one or more of them perform overt acts executing the common design. Once conspiracy is proven, the act of one is the act of all (Collective Criminal Responsibility). Every conspirator is equally liable as a co-principal, regardless of the individual extent of participation (*People v. Peralta*, 25 SCRA 759; *People v. Medina*, 292 SCRA 436).

Forms of Conspiracy:

- **Direct / Express Conspiracy:** An explicit, prior agreement and formal compact to commit the felony.
- **Implied / Wheel / Chain Conspiracy:** Inferred from the synchronized conduct, coordinated movements, and common concerted action of the accused immediately before, during, and after the commission of the offense.

2.3 Classification of Felonies According to Gravity (Article 9)

Article 9 divides felonies into three categories according to the gravity of the penalty attached to them by law:

- **1. Grave Felonies:** Those to which the law attaches the capital punishment (Reclusion Perpetua under RA 9346) or penalties which in any of their periods are afflictive (Reclusion Temporal, Prision Mayor, 6 years and 1 day to 40 years).
- **2. Less Grave Felonies:** Those to which the law attaches penalties which in their maximum period are correctional (Prision Correccional, Arresto Mayor, Destierro, 1 month and 1 day to 6 years).
- **3. Light Felonies:** Those infractions of law for the commission of which the penalty of arresto menor (1 day to 30 days) or a fine not exceeding ₱40,000 is provided.

2.4 Supplementary Application of the Revised Penal Code to Special Laws (Article 10)

Article 10 provides: 'Offenses which are punishable under special laws are not subject to the provisions of this Code. This Code shall be supplementary to such laws, unless the latter should specially provide the contrary.'

Under the Supplementary Rule of Article 10, the provisions of Book I of the Revised Penal Code (such as rules on penalties, modifying circumstances, civil liability, and subsidiary imprisonment) apply to special penal laws unless the special law expressly prohibits their application or provides a specialized mechanism (*People v. Simon*, G.R. No. 93028; *Go-Tan v. Spouses Tan*, G.R. No. 168852).

PART IV: JUSTIFYING CIRCUMSTANCES AND EXEMPTING CIRCUMSTANCES (ARTICLES 11–12)

Chapter 1: Justifying Circumstances (Article 11 — Zero Criminal and Civil Liability)

1.1 Concept, Nature, and Juridical Basis of Justifying Circumstances

Justifying circumstances are those where the act of a person is in accordance with law, such that the person is deemed not to have transgressed the law and does not incur any criminal liability whatsoever. In the eyes of the law, no crime was committed; the act is fully justified, lawful, and praised by the State.

General Rule on Civil Liability: Since there is no crime, there is generally NO civil liability ex delicto under Article 100. Exception: In State of Necessity (Article 11, Par. 4), civil indemnity is borne by the persons benefited by the prevention of the threatened greater evil (Article 101, RPC).

1.2 Self-Defense (Article 11, Paragraph 1)

Article 11, Paragraph 1 provides that any person who acts in defense of his person or rights incurs no criminal liability, provided that the following three indispensable requisites concur:

- **1. Unlawful Aggression (The Primary and Indispensable Element):** An actual physical assault or an imminent, sudden, and unexpected threat of an attack upon a person's life, limb, or rights. Unlawful aggression must be real, not merely imaginary or speculative. When unlawful aggression ceases, the right of the defender to continue inflicting harm immediately terminates (*People v. Alconga*, 78 Phil. 366; *People v. Dulin*, G.R. No. 171284).
- **2. Reasonable Necessity of the Means Employed to Prevent or Repel It:** The law does not require mathematical or mechanical equality of weapons, but rational equivalence based on the totality of circumstances: the nature and quality of weapons, physical size and condition of the parties, the urgency of the moment, and darkness. The defender is not expected to measure with mathematical precision the exact degree of force needed (Rule of Rational Equivalence - *People v. Encomienda*, 46 SCRA 522).
- **3. Lack of Sufficient Provocation on the Part of the Person Defending Himself:** The defender must not have given sufficient provocation that justified or invited the attack immediately preceding the aggression.

THE BATTERED WOMAN SYNDROME (BWS) UNDER R.A. 9262 & PEOPLE V. GENOSA

In *People v. Genosa* (G.R. No. 135981, 2004), the Supreme Court recognized the Battered Woman Syndrome as a valid form of self-defense. The doctrine was subsequently codified in Section 26 of Republic Act No. 9262 (Anti-Violence Against Women and Their Children Act of 2004).

Under Section 26 of R.A. 9262: 'Victim-survivors who are found by the courts to be suffering from battered woman syndrome do not incur any criminal and civil liability notwithstanding the absence of any of the elements for justifying circumstances of self-defense under the Revised Penal Code.' The cyclical pattern of abuse (Tension Building -> Acute Battering -> Loving Contrition) establishes the psychological state of imminent danger even while the batterer is resting or asleep.

1.3 Defense of Relatives (Article 11, Paragraph 2)

Anyone who acts in defense of the person or rights of his spouse, ascendants, descendants, legitimate, natural or adopted brothers and sisters, or his relatives by affinity in the same degrees, and those by consanguinity within the fourth civil degree, provided that the first and second requisites of self-defense are present, and the further requisite, in case the provocation was given by the person attacked, that the one making defense had no part therein.

1.4 Defense of Strangers (Article 11, Paragraph 3)

Anyone who acts in defense of the person or rights of a stranger, provided that the first and second requisites of self-defense are present, and that the person defending be not induced by revenge, resentment, or other evil motive.

1.5 State of Necessity / Avoidance of Greater Evil (Article 11, Paragraph 4)

Any person who, in order to avoid an evil or injury, does an act which causes damage to another, provided that the following requisites are present:

- **1.** The evil sought to be avoided actually exists;
- **2.** The injury feared be greater than that done to avoid it;
- **3.** There be no other practical and less harmful means of preventing it.

Civil Liability in State of Necessity: Under Article 101, the persons for whose benefit the harm has been prevented shall be civilly liable in proportion to the benefit which they may have received.

1.6 Fulfillment of Duty or Lawful Exercise of Right/Office (Article 11, Paragraph 5)

Requisites under Article 11, Par. 5:

- **1.** The accused acted in the performance of a duty or in the lawful exercise of a right or office;
- **2.** The injury caused or the offense committed be the necessary consequence of the due performance of duty or the lawful exercise of such right or office (*Cabanlig v. Sandiganbayan*, G.R. No. 148431).

1.7 Obedience to an Order Issued by a Superior for Some Lawful Purpose (Article 11, Paragraph 6)

Requisites under Article 11, Par. 6:

- **1.** An order has been issued by a superior;
- **2.** Such order has for its object a lawful purpose; and
- **3.** The means used by the subordinate to carry out said order were lawful. If the order is manifestly illegal on its face (such as an order to execute an unarmed prisoner), obedience is not a defense (*People v. Beronilla*, 96 Phil. 566).

Chapter 2: Exempting Circumstances (Article 12 — Non-Imputability)

2.1 Concept, Nature, and Juridical Basis of Exempting Circumstances

Exempting circumstances are those grounds for exemption from criminal liability where there is a complete absence of free will, intelligence, or voluntariness in the performance of the act. A crime is committed, but the actor is not criminally liable because the law recognizes that he could not form criminal malice or fault.

Civil Liability Remains: Unlike justifying circumstances, an exempting circumstance does NOT extinguish civil liability ex delicto (Article 101, RPC), which is borne by the guardians or estates of the actor, except in Paragraph 4 (Accident) and Paragraph 7 (Insuperable Cause) where civil liability is also absent.

2.2 Insanity and Imbecility (Article 12, Paragraph 1)

Imbecility: An imbecile is a person marked by mental deficiency (mental age between 2 and 7 years) who is completely incapable of understanding the moral nature of acts. An imbecile is exempt in all cases.

Insanity: Complete deprivation of intelligence and reason at the exact moment of committing the crime. A person acting during a lucid interval is criminally responsible.

The Cognitive Test (M'Naghten Rule): Under Philippine jurisprudence, insanity requires a complete deprivation of reason, intelligence, or discernment at the time of the commission of the act (*People v. Rafanan*, G.R. No. 54135).

2.3 Minority under Republic Act No. 9344 as Amended by Republic Act No. 10630

The Juvenile Justice and Welfare Act comprehensively reformed Article 12, Paragraphs 2 and 3 of the Revised Penal Code:

- **A. Child Fifteen (15) Years of Age or Below:** ABSOLUTELY EXEMPT from criminal liability. The child shall be subjected to an intervention program under the Local Social Welfare and Development Officer.
- **B. Child Above Fifteen (15) but Below Eighteen (18) Years of Age:** EXEMPT from criminal liability, UNLESS the child acted with DISCERNMENT. If the child acted without discernment, exemption is absolute. If the child acted WITH discernment, the child undergoes diversion or restorative proceedings; if convicted in court, the sentence is automatically suspended under Section 38 of R.A. 9344 and P.D. 603.

Discernment Defined: The capacity of the child at the time of the commission of the offense to understand the difference between right and wrong and the moral and legal consequences of the act (*Jose v. People*, G.R. No. 148371).

2.4 Accident (Article 12, Paragraph 4)

Any person who, while performing a lawful act with due care, causes an injury to another by mere accident without fault or intention of causing it, is exempt from criminal and civil liability.

Requisites:

- **1.** A person is performing a LAWFUL act;
- **2.** With DUE CARE;
- **3.** He causes injury to another by MERE ACCIDENT; and
- **4.** WITHOUT FAULT or INTENTION of causing it.

2.5 Irresistible Force (Article 12, Paragraph 5) and Uncontrollable Fear (Article 12, Paragraph 6)

Irresistible Force (*Vis Compulsiva* / *Vis Absoluta*): Physical force of an irresistible character applied by a third person that reduces the actor to a mere physical instrument.

Uncontrollable Fear: Moral compulsion or duress where the actor is compelled by intimidation or threat of a real, imminent, and equal or greater evil to commit an unlawful act against his will (*People v. Elicanal*, 35 Phil. 209).

2.6 Insuperable or Lawful Cause (Article 12, Paragraph 7)

Any person who fails to perform an act required by law, when prevented by some lawful or insuperable cause (e.g., a custodian unable to deliver public funds due to an impassable flood or armed roadblock).

PART V: MITIGATING, AGGRAVATING, ALTERNATIVE CIRCUMSTANCES, AND ABSOLUTORY CAUSES (ARTICLES 13–15)

Chapter 1: Mitigating Circumstances (Article 13)

1.1 Concept and Classes of Mitigating Circumstances

Mitigating circumstances are those which, if present in the commission of the crime, do not entirely free the actor from criminal liability, but serve to diminish the penalty imposed by reason of the lesser perversity of the offender, the diminished voluntariness of the act, or the lesser gravity of the moral wrong.

Classes of Mitigating Circumstances:

- **1. Ordinary Mitigating Circumstances:** Those enumerated under Article 13 of the Revised Penal Code. When present without any aggravating circumstance, an ordinary mitigating circumstance reduces the divisible penalty to its MINIMUM period (Article 64, Par. 2).
- **2. Privileged Mitigating Circumstances:** Those specific statutory circumstances which the law explicitly provides shall lower the penalty by ONE OR TWO DEGREES (e.g., minority under Art. 68, incomplete self-defense/exempting circumstance with majority of requisites under Art. 69). Privileged mitigating circumstances cannot be offset by any aggravating circumstance.

1.2 The Ten Mitigating Circumstances under Article 13

- **1. Incomplete Justifying or Exempting Circumstances (Art. 13, Par. 1):** When all the requisites necessary to justify the act or exempt from criminal liability in the respective cases mentioned in Articles 11 and 12 are not attendant, provided the majority of requisites or the indispensable condition is present (e.g., in incomplete self-defense, unlawful aggression MUST be present; in incomplete state of necessity, the actual evil feared must exist).
- **2. Age (Art. 13, Par. 2):** That the offender is under eighteen years of age or over seventy years. (Note: under RA 9344, minors are governed by the Juvenile Justice system; if convicted, the penalty is lowered by degree). For offenders over seventy years of age, death/reclusion perpetua is never executed (Art. 83), and imprisonment is suspended or commuted.

- **3. Praeter Intentionem (Art. 13, Par. 3):** That the offender had no intention to commit so grave a wrong as that committed. This circumstance is appreciated only in intentional felonies where there is a notable disparity between the means employed and the resulting consequence (*People v. Amit*, 32 SCRA 95).
- **4. Sufficient Provocation or Threat (Art. 13, Par. 4):** That sufficient provocation or threat on the part of the offended party immediately preceded the act. Provocation must be adequate, unjust, and originate from the victim.
- **5. Immediate Vindication of a Grave Offense (Art. 13, Par. 5):** That the act was committed in the immediate vindication of a grave offense to the one committing the felony, his spouse, ascendants, descendants, legitimate, natural, or adopted brothers or sisters, or relatives by affinity within the same degrees. 'Immediate' allows a reasonable lapse of time for emotional obfuscation to subsist (*People v. Parana*, 64 Phil. 331).
- **6. Passion or Obfuscation (Art. 13, Par. 6):** That of having acted upon an impulse so powerful as naturally to have produced passion or obfuscation. The act must arise from lawful and moral sentiments; passion arising from unbridled lust, jealousy without basis, or resentment does not qualify (*People v. Silang Cruz*, 53 Phil. 637).
- **7. Voluntary Surrender and Voluntary Confession of Guilt (Art. 13, Par. 7):** This paragraph contains two distinct mitigating circumstances:
 - **a. Voluntary Surrender:** Requisites: (1) The offender has not been actually arrested; (2) The offender surrendered himself to a person in authority or his agent; (3) The surrender was voluntary, spontaneous, and unconditional.
 - **b. Voluntary Confession of Guilt (Plea of Guilty):** Requisites: (1) The offender spontaneously confessed his guilt; (2) The confession was made in open court; (3) The confession was made prior to the presentation of evidence for the prosecution.
- **8. Physical Defect (Art. 13, Par. 8):** That the offender is deaf and dumb, blind, or otherwise suffering from some physical defect which restricts his means of action, defense, or communication with his fellow beings.
- **9. Illness Diminishing Will-Power (Art. 13, Par. 9):** Such illness of the offender as would diminish the exercise of the will-power of the offender without depriving him of the consciousness of his acts (e.g., severe acute clinical depression, hysterical somnambulism).
- **10. Analogous Circumstances (Art. 13, Par. 10):** Any other circumstances of a similar nature and analogous to those above mentioned (e.g., extreme poverty analogous to state of necessity, restitution of stolen goods analogous to voluntary surrender).

Chapter 2: Aggravating Circumstances (Article 14 — All 21 Circumstances)

2.1 Classification of Aggravating Circumstances

Aggravating circumstances are those which, if attendant in the commission of the crime, serve to increase the penalty without exceeding the maximum penalty provided by law, or change the qualification of the crime.

- **A. Generic Aggravating:** Those that apply to all crimes generally (e.g., dwelling, nighttime, recidivism). They can be offset by ordinary mitigating circumstances.

- **B. Specific Aggravating:** Those that apply only to particular crimes (e.g., cruelty in crimes against persons, abuse of confidence in estafa/theft).
- **C. Qualifying Aggravating:** Those that change the legal nature and designation of the felony, creating a higher offense with a higher penalty (e.g., treachery, evident premeditation, or price/reward qualifying Homicide into Murder under Art. 248). Qualifying circumstances cannot be offset by any mitigating circumstance and must be specifically alleged in the Information.
- **D. Inherent Aggravating:** Those that are essential ingredients of the crime (e.g., deceit in estafa, breaking of doors in robbery with force upon things). They cannot be appreciated again to increase the penalty.
- **E. Special Aggravating:** Those created by special laws or specific Code provisions that cannot be offset by any mitigating circumstance (e.g., Quasi-Recidivism under Art. 160, use of unlicensed firearm under RA 10591).

2.2 Complete Commentary on the Twenty-One Aggravating Circumstances (Article 14)

- **1. Advantage Taken of Public Position (Art. 14, Par. 1):** The offender is a public officer who uses the influence, prestige, or ascendancy of his office to facilitate the commission of the crime.
- **2. Contempt of or Insult to Public Authorities (Art. 14, Par. 2):** The crime is committed in the presence of a public authority who is engaged in the exercise of his functions and is not the victim of the crime.
- **3. Insult or Lack of Respect Due to Rank, Age, Sex, or Dwelling (Art. 14, Par. 3):** Deliberately insulting the victim's high official/social rank, tender or advanced age, female sex, or violating the sanctity of the victim's dwelling ('A man's house is his castle').
- **4. Abuse of Confidence or Obvious Ungratefulness (Art. 14, Par. 4):** Betraying a special trust or confidence reposed by the offended party in the offender.
- **5. Palace of the Chief Executive or Places of Public Worship (Art. 14, Par. 5):** Desecrating places dedicated to the highest public authority or religious worship.
- **6. Nighttime, Uninhabited Place, or Band (Art. 14, Par. 6):** Nighttime (nocturnidad), uninhabited place (despoblado), or by a band (en cuadrilla — more than three armed malefactors) especially sought or taken advantage of to facilitate execution or insure impunity.
- **7. On Occasion of a Calamity (Art. 14, Par. 7):** Committing the crime during a fire, shipwreck, earthquake, epidemic, or other conflagration.
- **8. Aid of Armed Men or Persons Who Insure Impunity (Art. 14, Par. 8):** Engaging the presence of armed accomplices to intimidate the victim or prevent interference.
- **9. Recidivism (Reincidencia - Art. 14, Par. 9):** A recidivist is one who, at the time of his trial for one crime, shall have been previously convicted by final judgment of another crime EMBRACED IN THE SAME TITLE of the Revised Penal Code.
- **10. Reiteracion or Habituality (Art. 14, Par. 10):** The offender has been previously punished for an offense to which the law attaches an equal or greater penalty, or for two or more crimes to which it attaches a lighter penalty (embraced in different titles).
- **11. Price, Reward, or Promise (Art. 14, Par. 11):** The crime is committed in consideration of money, price, or reward. Operates as a qualifying circumstance in Murder.
- **12. By Means of Inundation, Fire, Poison, Explosion, or Deraiment (Art. 14, Par. 12):** Employing destructive artifices involving great waste and ruin.

- **13. Evident Premeditation (Art. 14, Par. 13):** Requisites: (1) The time when the offender determined to commit the crime; (2) An act manifestly indicating that the culprit clung to his determination; (3) A sufficient lapse of time between the determination and the execution to allow him to reflect upon the consequences of his act and to allow his conscience to overcome his resolution (*People v. Obrero*, G.R. No. 144325).
- **14. Craft, Fraud, or Disguise (Art. 14, Par. 14):** Craft involves cunning or intellectual trickery; fraud involves insidious machinations; disguise involves physical concealment of identity.
- **15. Superior Strength or Means Employed to Weaken Defense (Art. 14, Par. 15):** Taking deliberate advantage of physical disproportion in numbers, size, or weaponry to overpower the victim.
- **16. Treachery (Alevosía - Art. 14, Par. 16):** There is treachery when the offender commits any of the crimes against persons, employing means, methods, or forms in the execution thereof which tend directly and specially to insure its execution, without risk to himself arising from the defense which the offended party might make. Requisites: (1) Employment of means of execution that gives the victim no opportunity to defend himself; (2) The means of execution was consciously and deliberately adopted by the offender (*People v. Villalba*, G.R. No. 207086).
- **17. Ignominy (Art. 14, Par. 17):** Means employed or circumstances brought about which add moral humiliation and disgrace to the physical injuries inflicted (e.g., raping a victim in front of her husband and children).
- **18. Unlawful Entry (Art. 14, Par. 18):** Entering a building through a place not intended for ingress (e.g., scaling a balcony, climbing through a window).
- **19. Breaking Wall, Roof, Floor, Door, or Window (Art. 14, Par. 19):** Actual physical destruction of an entrance barrier.
- **20. Aid of Minors or Use of Motor Vehicles (Art. 14, Par. 20):** With the aid of persons under fifteen years of age, or by means of motor vehicles, motorized watercraft, airships, or other similar vehicles (as amended).
- **21. Cruelty (Art. 14, Par. 21):** Deliberately and inhumanly augmenting the suffering of the victim, by causing other physical injury not necessary for the commission of the crime (e.g., slowly gouging out eyes or amputating fingers before killing).

Chapter 3: Alternative Circumstances and Absolutory Causes (Article 15)

3.1 Alternative Circumstances (Article 15)

Alternative circumstances are those which must be taken into consideration as aggravating or mitigating according to the nature and effects of the crime and the other conditions attending its commission:

- **1. Relationship:** The alternative circumstance of relationship shall be taken into consideration when the offended party is the spouse, ascendant, descendant, legitimate, natural, or adopted brother or sister, or relative by affinity in the same degrees of the offender. (Mitigating in property crimes; Aggravating in crimes against persons and chastity, except where relationship is inherent as in Parricide).
- **2. Intoxication:** Mitigating if the intoxication is not habitual and was not subsequent to the plan to commit the crime (unintentional). Aggravating if intoxication is habitual or intentional (sought to fortify courage).

- **3. Degree of Instruction and Education:** Low degree of education/illiteracy is mitigating in crimes where complex statutory knowledge is needed; it is NOT mitigating in crimes against persons, property, or chastity which are universally known to be wrong.

3.2 Absolutory Causes in Philippine Criminal Law

Absolutory causes are specific legal provisions where, for reasons of public policy, domestic tranquility, or state interest, an act which constitutes a crime is totally exempt from criminal penalty:

- **1. Spontaneous Desistance in Attempted Stage (Art. 6, Par. 3):** Abandonment of criminal enterprise before all acts of execution are performed.
- **2. Instigation by Law Enforcement:** When law enforcers induce an innocent person to commit a crime he had no intention of committing (distinguished from valid Entrapment).
- **3. Death or Physical Injuries under Exceptional Circumstances (Art. 247):** A legally married person or parent who surprises spouse or daughter under 18 in the act of sexual intercourse and kills them or the paramour shall suffer only destierro.
- **4. Exemption from Criminal Liability for Property Crimes Among Relatives (Art. 332):** No criminal liability for theft, swindling, or malicious mischief committed by spouses, ascendants, descendants, brothers/sisters living together. Civil liability remains.
- **5. Marriage of Offender and Offended Party in Private Crimes (Art. 266-C & Art. 344):** Extinguishes criminal liability in Rape, Seduction, Abduction, and Acts of Lasciviousness.
- **6. Relational Exemption of Accessories (Art. 20):** Accessories who are spouses, ascendants, descendants, brothers/sisters are exempt, unless they profited from the crime.

PART VI: PERSONS CRIMINALLY LIABLE FOR FELONIES (ARTICLES 16–20)

Chapter 1: Classification of Persons Liable (Article 16)

1.1 Tiers of Criminal Participation under Article 16

Criminal liability attaches not only to the person who physically executes the criminal act, but also to all individuals who contribute to its inception, preparation, execution, or post-consummation concealment.

Article 16 of the Revised Penal Code establishes the three distinct tiers of criminal participation:

- **1. Principals (Autores):** Those who take a direct part in the execution of the act, who directly induce others to commit it, or who cooperate in the commission of the offense by another act without which it would not have been accomplished (Article 17).
- **2. Accomplices (Cómplices):** Those who, not being principals, cooperate in the execution of the offense by previous or simultaneous acts (Article 18).
- **3. Accessories (Encubridores):** Those who, having knowledge of the commission of the crime, and without having participated therein, either as principals or accomplices, take part subsequent to its commission in specific manners defined by law (Article 19).

Crucial Distinction Regarding Light Felonies: Under Article 16, accessories are criminally liable ONLY in Grave and Less Grave Felonies. In Light Felonies (punishable by arresto menor or a fine not exceeding 40,000

pesos), only Principals and Accomplices are criminally liable. Accessories to light felonies incur zero criminal liability under the Revised Penal Code.

Chapter 2: Principals and the Doctrine of Conspiracy (Article 17)

2.1 The Three Classes of Principals under Article 17

Article 17 enumerates three distinct categories of principals, all of whom suffer the full statutory penalty prescribed for the felony:

- **A. Principals by Direct Participation (Art. 17, Par. 1):** Those who take a direct part in the physical execution of the felony. Requisites: (1) Active physical participation in the criminal act; (2) Presence at the locus criminis during execution (except where conspiracy is established); (3) Common criminal design or unity of action and intention with co-perpetrators.
- **B. Principals by Inducement / Intellectual Principals (Art. 17, Par. 2):** Those who directly force or induce others to commit the felony. Inducement may take two forms: (1) By Price, Reward, or Promise (the consideration must be the moving cause that determines the perpetrator to act); or (2) By Irresistible Force, Uncontrollable Fear, or Command of Dominant Authority. Requisites: The inducement must be made directly with the intention of procuring the commission of the crime, and such inducement must be the determinative cause that led the physical actor to execute the felony (*People v. Ong*, G.R. No. L-34497). Mere words of advice, general instigation, or praise do not constitute principalship by inducement.
- **C. Principals by Indispensable Cooperation (Art. 17, Par. 3):** Those who cooperate in the commission of the offense by another act without which it would not have been accomplished. Requisites: (1) Knowledge of the criminal intent of the principal by direct participation; (2) Performance of an act of cooperation that is absolutely indispensable to the realization of the crime (e.g., providing the master key to a bank vault by an insider, or disabling security alarms at the exact scheduled moment). If the cooperation was merely contributory and not indispensable, the actor is liable only as an Accomplice.

2.2 The Jurisprudential Doctrine of Conspiracy (Conspiración)

Conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it (Article 8). In Philippine criminal law, conspiracy operates in two distinct legal dimensions:

- **1. Conspiracy as a Crime in Itself:** Conspiracy is punishable as an independent substantive offense only in specific cases expressly provided by law (e.g., Conspiracy to Commit Treason under Art. 115, Conspiracy to Commit Rebellion under Art. 136, Conspiracy to Commit Sedition under Art. 141, Conspiracy to Commit Terrorism under the Anti-Terrorism Act).
- **2. Conspiracy as a Rule for Collective Criminal Liability:** When conspiracy is proven among co-accused in the commission of any felony, the act of one is legally deemed the act of all ('El acto de uno es el acto de todos'). All conspirators are liable as principals, regardless of the individual degree of their physical participation (*People v. Peralta*, 25 SCRA 759).

Forms of Proof for Conspiracy: Conspiracy need not be established by direct proof of a formal prior written or verbal agreement. It may be deduced from the synchronous, coordinate, and concerted acts of the

perpetrators before, during, and immediately after the execution of the crime, clearly demonstrating a common criminal design and purpose (*People v. Caraang*, 418 SCRA 321).

Deviations and Desistance from Conspiracy: If one conspirator commits an independent, unforeseen felony that was not agreed upon and not the natural and logical consequence of the common design, the other conspirators are NOT liable for such separate felony, unless they were present and failed to prevent it or actively joined in its execution. Furthermore, a conspirator who effectively and spontaneously desists and abandons the enterprise before any overt act of execution is committed incurs zero criminal liability for the consummated offense.

Chapter 3: Accomplices (Article 18)

3.1 Definition, Elements, and Requisites of Accomplices

Accomplices are persons who, not being principals (neither by direct participation, inducement, nor indispensable cooperation), cooperate in the execution of the offense by previous or simultaneous acts.

Requisites to Incur Liability as an Accomplice:

- **1. Concurrence of Criminal Intent:** There must be community of design; that is, the accomplice knows the criminal intention of the principal by direct participation and decides to assist him.
- **2. Contribution of Previous or Simultaneous Acts:** The accomplice performs positive acts that facilitate, encourage, or aid in the execution of the crime.
- **3. Non-Indispensable Character of Cooperation:** The acts of cooperation performed by the accomplice are contributory, auxiliary, or secondary, but NOT indispensable. If the crime would have been accomplished even without his assistance, his liability is that of an accomplice, not a principal (*People v. Tamayo*, 44 Phil. 38).
- **4. Causal Relation:** There must be a direct causal nexus between the assistance rendered by the accomplice and the execution of the felony by the principal.

3.2 Doctrinal Distinctions: Principal vs. Accomplice vs. Conspirator

The distinction between a co-conspirator (principal) and an accomplice lies primarily in the nature of the agreement and the indispensability of the act. A co-conspirator enters into a common design and assumes full collective responsibility for the entire criminal venture. An accomplice, on the other hand, does not participate in the formulation of the conspiracy but merely lends subsequent or simultaneous non-essential assistance with knowledge of the principal's criminal purpose (*People v. De Vera*, 312 SCRA 640). Under Article 52, accomplices are penalized by the penalty next lower in degree than that prescribed for the principal.

Chapter 4: Accessories and Relational Exemptions (Articles 19–20)

4.1 The Three Modalities of Accessories under Article 19

Accessories are those who, having knowledge of the commission of the crime, and without having participated therein as principals or accomplices, take part SUBSEQUENT to its commission in any of the following three modalities:

- **1. Profiting by or Assisting in Profiting from the Crime (Art. 19, Par. 1):** By profiting themselves or assisting the offender to profit by the effects of the crime (e.g., purchasing stolen jewelry or fencing stolen vehicles with knowledge of their illicit origin). Note: Presidential Decree No. 1612 (The Anti-Fencing Law of 1979) created the independent special crime of 'Fencing', which imposes heavier penalties on professional buyers and possessors of stolen goods.
- **2. Concealing or Destroying the Body, Effects, or Instruments of the Crime (Art. 19, Par. 2):** By concealing or destroying the corpus delicti, the effects, or instruments of the crime in order to prevent its discovery (e.g., wiping fingerprints, hiding the murder weapon, burying the corpse, or burning the victim's vehicle). Note: Presidential Decree No. 1829 penalizes obstruction of justice as an independent offense.
- **3. Harboring, Concealing, or Assisting in the Escape of the Principal (Art. 19, Par. 3):** By harboring, concealing, or assisting in the escape of the principal of the crime, subject to strict legal conditions:
- **a. When the Principal is Guilty of Heinous/Grave Offenses:** If the principal is guilty of Treason, Parricide, Murder, an attempt against the life of the Chief Executive, or is known to be habitually guilty of some other crime, ANY private citizen or public officer who harbors or assists his escape is criminally liable as an accessory.
- **b. When the Principal is Guilty of Other Felonies:** For any other felony, the accessory harboring or assisting the principal must be a PUBLIC OFFICER who acts with abuse of his official functions. A private person who harbors a thief or physical injury assailant (not being a habitual criminal) does NOT incur accessory liability under Article 19, Paragraph 3.

4.2 Relational Exemption of Accessories (Article 20)

Under Article 20 of the Revised Penal Code, the penalties prescribed for accessories shall NOT be imposed upon those who are:

- **Exempt Relatives:** The spouse, ascendants, descendants, legitimate, natural, or adopted brothers or sisters, or relatives by affinity within the same degrees of the principal offender.

Rationale for Relational Exemption: The law recognizes that human affection, familial ties, and the natural instinct of self-preservation among close relatives overpower the civic duty to surrender a loved one. It is contrary to nature and public policy to compel a mother, husband, or child to turn over their immediate kin to the authorities or refrain from harboring them in distress.

THE VITAL EXCEPTION TO ARTICLE 20: The relational exemption applies EXCLUSIVELY to Paragraph 2 (concealing corpus delicti) and Paragraph 3 (harboring/assisting escape). The exemption DOES NOT APPLY to Paragraph 1 of Article 19 (profiting from the crime or assisting the offender to profit). A father or wife who helps sell stolen property or keeps the proceeds of robbery for pecuniary gain is NOT exempt and remains fully criminally liable as an accessory.

LANDMARK JURISPRUDENCE: DOCTRINE OF ACCESSORY AND CONSPIRACY DISTINCTIONS

In *People v. Talingdan* (84 SCRA 19), a police officer who was present during the murder and subsequently helped the killers by covering up the crime and filing false reports was held liable as an accessory under Art. 19(2) and (3) due to abuse of public office.

In *People v. Doble* (114 SCRA 404), the Supreme Court ruled that where there is doubt as to whether an accused

acted as a co-conspirator principal or merely as an accomplice, the court must resolve the doubt in favor of the lesser liability as an accomplice, preserving the constitutional presumption of maximum leniency.

In *People v. Medina* (G.R. No. 138066), the Court affirmed that an accused who was not part of the initial conspiracy to rob but arrived later and assisted in dividing and loading the stolen merchandise was an accessory under Art. 19(1), and could not claim the familial exemption because he financially profited from the felony.

PART VII: PENALTIES IN GENERAL, CLASSIFICATION, COMPUTATION, COMPLEX CRIMES, AND EXECUTION (ARTICLES 21–88)

Chapter 1: Penalties in General and Constitutional Rules (Articles 21–24)

1.1 The Concept, Nature, and Juridical Theories of Penalty

Penalty is the suffering that is inflicted by the State for the transgression of a penal law. In legal contemplation, penalty represents the coercive instrument through which society vindicates the moral and juridical order disrupted by the offender.

The Juridical Theories of Penal Sanction:

- **1. Retributive / Classical Theory (*Punitur quia peccatum est*):** Penalty is the necessary and just retribution for the moral evil committed. The severity of the punishment must be mathematically proportional to the gravity of the offense.
- **2. Exemplary / Deterrence Theory (*Punitur ut ne peccetur*):** The infliction of punishment serves as a formidable warning to society to dissuade other citizens from committing similar crimes.
- **3. Preventive / Incapacitative Theory:** Punishment protects society by physically isolating and incapacitating dangerous felons through incarceration.
- **4. Reformatory / Positivist Theory:** Crime is viewed as a social and psychological pathology; penalty is aimed at the moral rehabilitation, re-education, and social reintegration of the convict.

1.2 Constitutional and Statutory Boundaries of Penalty (Articles 21–24)

- **A. Non-Retroactivity of Penalties (Art. 21):** No felony shall be punishable by any penalty not prescribed by law prior to its commission (*Nulla poena sine lege praevia*).
- **B. Retroactivity of Favorable Penalties (Art. 22):** Penal laws that lighten penalties or decriminalize acts operate retroactively, provided the convict is not a habitual delinquent.
- **C. What Are NOT Considered Penalties (Art. 24):** The following measures are legally NOT considered penalties: (1) The arrest and temporary detention of accused persons during preliminary investigation or trial; (2) The preventive suspension from public office during administrative or criminal proceedings; (3) Fines imposed by administrative superiors or judicial contempt sanctions; (4) Deprivations of rights and reparations which civil law may decree.

Chapter 2: Classification, Hierarchy, and Duration of Penalties (Articles 25–45)

2.1 The Graduated Scale of Principal Penalties (Article 25)

Article 25 classifies principal penalties into distinct categories according to their gravity and legal duration:

- **1. Capital Punishment:** Death (Mortis). Under Republic Act No. 9346 (enacted June 24, 2006), the death penalty was completely abolished and prohibited in the Philippines. In all cases where the law prescribes the death penalty, the penalty of Reclusion Perpetua without eligibility for parole shall be imposed.
- **2. Afflictive Penalties (Penas Aflictivas):** Penalties of the highest severity:
 - **a. Reclusion Perpetua:** An indivisible penalty with an imprisonment duration of 20 years and 1 day to 40 years. (Eligible for pardon consideration after serving 30 years under Art. 27).
 - **b. Reclusion Temporal:** Imprisonment from 12 years and 1 day to 20 years.
 - **c. Perpetual or Temporary Absolute Disqualification:** Deprivation of all public offices, voting rights, pensions, and professional licenses.
 - **d. Perpetual or Temporary Special Disqualification:** Deprivation of a specific public office, profession, or right of suffrage.
 - **e. Prison Mayor:** Imprisonment from 6 years and 1 day to 12 years.
- **3. Correctional Penalties (Penas Correccionales):** Penalties of intermediate gravity:
 - **a. Prison Correccional:** Imprisonment from 6 months and 1 day to 6 years.
 - **b. Arresto Mayor:** Imprisonment from 1 month and 1 day to 6 months.
 - **c. Destierro:** Banishment / prohibition from entering the designated place of crime or residence within a radius of not less than 25 kilometers and not more than 250 kilometers, for a duration of 6 months and 1 day to 6 years.
 - **d. Suspension:** Temporary suspension from public office or right of suffrage.
- **4. Light Penalties (Penas Leves):** Penalties for minor infractions:
 - **a. Arresto Menor:** Imprisonment from 1 day to 30 days.
 - **b. Public Censure (Reprension Publica):** Public judicial reprimand.
- **5. Penalties Common to the Three Classes:** Fine and Bond to keep the peace. Under Republic Act No. 10951 (enacted August 29, 2017), the monetary thresholds for fines and property values across the entire Revised Penal Code were comprehensively adjusted to reflect modern economic realities.

2.2 Doctrinal Distinction: Reclusion Perpetua vs. Life Imprisonment

The Supreme Court has repeatedly emphasized that Reclusion Perpetua and Life Imprisonment are NOT synonymous or interchangeable (*People v. Baguio*, 196 SCRA 459):

- **Reclusion Perpetua:** A specific penalty prescribed exclusively by the Revised Penal Code. It has a definite statutory duration (20 years and 1 day to 40 years), carries inherent accessory penalties (civil interdiction for life and perpetual absolute disqualification under Art. 41), and is divisible into three periods when non-capital under Article 65.
- **Life Imprisonment:** A penalty prescribed exclusively by Special Penal Laws (such as R.A. 9165 Comprehensive Dangerous Drugs Act). It has no fixed duration, does not carry the automatic accessory penalties of the RPC, and does not have minimum, medium, or maximum periods.

2.3 Accessory Penalties (Articles 40–45)

Accessory penalties are those deemed automatically imposed with the principal penalty without need of express mention in the judgment:

- **1. Civil Interdiction (Art. 41):** Deprives the offender during the time of his sentence of the rights of parental authority, guardianship over person or property of wards, marital authority, and the right to manage and dispose of his own property by inter vivos acts.
- **2. Perpetual / Temporary Absolute Disqualification (Art. 30):** Deprivation of public office, right of suffrage, and incapacity to hold public honors.
- **3. Forfeiture of the Proceeds and Instruments of the Crime (Art. 45):** Every penalty imposed carries with it the forfeiture of the instruments and proceeds of the offense, which shall be confiscated in favor of the Government, unless they belong to an innocent third party.

Chapter 3: Complex Crimes, Continued Crimes, and Graduation Rules (Articles 46–77)

3.1 Complex Crimes under Article 48 of the Revised Penal Code

Article 48 governs Complex Crimes, where for reasons of legislative economy and fairness, a single penalty is applied to multiple criminal offenses:

- **A. Compound Crime (Delito Compuesto):** When a SINGLE ACT constitutes two or more grave or less grave felonies (e.g., throwing a single hand grenade that kills one victim and seriously injures three bystanders; firing a single bullet that passes through one person killing him and hits another person wounding him).
- **B. Complex Crime Proper (Delito Complejo):** When an offense is a NECESSARY MEANS for committing the other (e.g., Falsification of a public document in order to commit Estafa; Forcible Abduction as a necessary means to commit Rape).
- **Penalty Imposed for Complex Crimes (Art. 48):** The penalty for the MOST SERIOUS CRIME shall be imposed, the same to be applied in its MAXIMUM PERIOD.

Special Complex Crimes / Composite Crimes Distinguished: Special complex crimes are single, indivisible offenses created by specific codal provisions where two or more crimes are fused by statutory definition with a specific single penalty (e.g., Robbery with Homicide under Art. 294, Rape with Homicide under Art. 266-B, Robbery with Arson, Kidnapping with Murder). Article 48 DOES NOT APPLY to special complex crimes; they are treated as unique single offenses where all participating conspirators are liable for the composite result.

Continued Crime (Delito Continuado): A continuous, unlawful act arising from a single criminal resolution, consisting of a series of repeated overt acts executed over time against the same or different victims (e.g., a cashier stealing cash day by day from a company safe under a single continuous plan). A continued crime constitutes only ONE single offense.

3.2 Rules for Application of Divisible Penalties (Articles 62–65)

When the penalty prescribed by law is a divisible penalty consisting of three periods (Minimum, Medium, and Maximum), the court applies the following mathematical rules under Article 64:

- **1. Neither Mitigating nor Aggravating:** Impose the penalty in its MEDIUM period.

- **2. Only One Mitigating Circumstance:** Impose the penalty in its MINIMUM period.
- **3. Only One Aggravating Circumstance:** Impose the penalty in its MAXIMUM period.
- **4. Both Mitigating and Aggravating Present:** The court shall offset them against each other according to their respective numbers and intrinsic gravity.
- **5. Two or More Mitigating with Zero Aggravating (Art. 64, Par. 5):** The court shall impose the penalty NEXT LOWER IN DEGREE than that prescribed by law, in the period applicable according to the number and nature of circumstances.

3.3 Habitual Delinquency vs. Recidivism vs. Reiteracion vs. Quasi-Recidivism

Philippine penal law recognizes four distinct forms of repeat criminality:

- **1. Recidivism (Art. 14, Par. 9):** Previous conviction by final judgment of another crime embraced in the SAME TITLE of the RPC. Generic aggravating.
- **2. Reiteracion / Habituality (Art. 14, Par. 10):** Previous punishment for offenses embraced in DIFFERENT TITLES. Generic aggravating.
- **3. Habitual Delinquency (Art. 62, Par. 5):** Within 10 years from release or last conviction of robbery, theft, estafa, falsification, serious or less serious physical injuries, the offender is found guilty a THIRD TIME OR OFTENER. Imposes substantial additional progressive prison penalties.
- **4. Quasi-Recidivism (Art. 160):** Any person who shall commit a new felony after having been convicted by final judgment, BEFORE BEGINNING to serve sentence or WHILE SERVING the same, shall be punished by the MAXIMUM PERIOD of the penalty prescribed for the new felony. Quasi-recidivism is a special aggravating circumstance that CANNOT BE OFFSET by any mitigating circumstance.

3.4 The Three-Fold Rule in Plurality of Penalties (Article 70)

When a convict is sentenced to multiple prison terms for distinct crimes, the maximum duration of his actual imprisonment shall not exceed THREE TIMES the most severe of the penalties imposed upon him; and in no case shall the total actual duration of imprisonment exceed FORTY (40) YEARS (Article 70).

Chapter 4: Subsidiary Imprisonment, ISLAW, and Probation (Articles 39, 78–88 & Special Laws)

4.1 Subsidiary Imprisonment (Article 39 as amended by R.A. No. 10951)

If the convict has no property with which to satisfy a fine, he shall be subject to a subsidiary personal liability (subsidiary imprisonment) at the statutory rate of ONE DAY FOR EACH AMOUNT EQUIVALENT TO THE HIGHEST MINIMUM WAGE RATE in the National Capital Region prevailing at the time of the commission of the crime.

Statutory Limits on Subsidiary Imprisonment:

- **1.** If the principal penalty is Prison Correccional or Arresto, subsidiary imprisonment CANNOT EXCEED ONE-THIRD (1/3) of the principal sentence, and in no case shall exceed one year.
- **2.** If the penalty imposed is fine ONLY, subsidiary imprisonment cannot exceed six months (for light felonies) or one year (for grave/less grave felonies).
- **3.** NO subsidiary imprisonment can be imposed if the principal penalty is HIGHER than Prison Correccional (i.e., if it is an Afflictive penalty like Prison Mayor or Reclusion Temporal).

4.2 The Indeterminate Sentence Law (Act No. 4103 as amended)

The Indeterminate Sentence Law (ISLAW) mandates courts to impose an indeterminate prison term consisting of a Minimum term and a Maximum term, to facilitate parole and social reintegration.

Rules for Determining Minimum and Maximum under ISLAW:

- **For RPC Felonies:** The MAXIMUM term is the penalty properly imposed under the Revised Penal Code considering all attending aggravating and mitigating circumstances under Article 64. The MINIMUM term is fixed ANYWHERE WITHIN THE RANGE OF THE PENALTY NEXT LOWER IN DEGREE to that prescribed by the Code for the offense, without regard to attending circumstances.
- **For Special Penal Laws:** The Maximum term shall not exceed the statutory maximum penalty; the Minimum term shall not be less than the statutory minimum penalty.

Disqualifications from ISLAW: (1) Convicts sentenced to Death or Reclusion Perpetua; (2) Treason, Conspiracy/Proposal to Commit Treason, Rebellion, Sedition, Espionage, Piracy; (3) Habitual Delinquents; (4) Escapists from prison; (5) Convicts whose maximum term of imprisonment does not exceed one year; (6) Those granted conditional pardon who violated its conditions.

4.3 The Probation Law of 1976 (P.D. No. 968 as amended by R.A. No. 10707)

Probation is a disposition under which a convicted defendant is released subject to conditions imposed by the court and under the supervision of a probation officer, without serving the prison sentence.

Disqualifications from Probation (Section 9, P.D. 968 as amended by R.A. 10707):

- 1. Sentenced to serve a maximum term of imprisonment of MORE THAN SIX (6) YEARS;
- 2. Convicted of any crime against the national security or public order;
- 3. Previously convicted by final judgment of an offense punished by imprisonment of not less than 6 months and 1 day and/or a fine of not less than 1,000 pesos;
- 4. Once placed on probation under the provisions of the decree;
- 5. Who have perfected an appeal from the judgment of conviction (CRITICAL EXCEPTION under RA 10707: When a judgment of conviction imposing a non-probationable penalty is appealed and the appellate court modifies the penalty to a PROBATIONABLE one, the defendant may apply for probation within 15 days from promulgation of the modified decision).

LANDMARK JURISPRUDENCE ON PENAL COMPUTATION AND ISLAW

In *People v. Temporada* (G.R. No. 173473, 2008 En Banc), the Supreme Court laid down the definitive step-by-step formula for computing Indeterminate Sentences: First, find the prescribed penalty by law; Second, determine the penalty next lower in degree for the MINIMUM term; Third, apply mitigating and aggravating circumstances on the prescribed penalty to determine the MAXIMUM term.

In *People v. Jugueta* (G.R. No. 202124, 2016 En Banc), the Supreme Court standardized the imposition of civil indemnities and damages across all crimes in relation to their corresponding penalties.

In *Hernan v. Sandiganbayan* (G.R. No. 222883, 2017), the Court affirmed that statutory adjustments in penalties under RA 10951 must immediately benefit the convict under Article 22, modifying sentences even after entry of final judgment.

PART VIII: EXTINCTION OF CRIMINAL LIABILITY AND CIVIL LIABILITY ARISING FROM CRIMES (ARTICLES 89–113)

Chapter 1: Total Extinction of Criminal Liability (Articles 89–93)

1.1 Causes of Total Extinction of Criminal Liability (Article 89)

Criminal liability is completely extinguished by any of the seven grounds enumerated in Article 89:

- **1. Death of the Convict:** Personal criminal liability is extinguished by death. As to civil liability, death of the accused pending appeal extinguishes civil liability arising from the crime (*ex delicto*), but independent civil liabilities rooted in other sources of obligations under the Civil Code may survive (*People v. Bayotas*).
- **2. Service of Sentence:** Full execution and completion of the principal and accessory penalties imposed by final judgment.
- **3. Amnesty:** An act of sovereign grace by the President, with the concurrence of a majority of all the members of Congress, which completely obliterates and overlooks the offense itself, restoring the person to the status of an innocent man as if no crime had been committed.
- **4. Absolute Pardon:** An act of executive clemency granted by the President which forgives the penalty imposed. An absolute pardon exempts the individual from the punishment that the law inflicts, but does NOT erase the civil liability *ex delicto*.
- **5. Prescription of the Crime (Art. 90 & 91):** The forfeiture of the State's right to prosecute the offense due to the lapse of the statutory period of time.
- **6. Prescription of the Penalty (Art. 92 & 93):** The forfeiture of the State's right to execute the penalty imposed upon a convict by final judgment due to the lapse of the statutory period of time.
- **7. Marriage of the Offended Woman (Art. 266-C & 344):** In cases of Rape, Seduction, Abduction, and Acts of Lasciviousness, a subsequent valid marriage between the offender and the offended party completely extinguishes the criminal action and the penalty.

1.2 Doctrinal Distinctions: Amnesty vs. Pardon

The distinctions between Amnesty and Pardon are fundamental in Philippine constitutional and criminal law (*Barrioquinto v. Fernandez*, 82 Phil. 642):

- **Amnesty:** Granted for political offenses (e.g., rebellion, coup d'état); granted to classes of persons; requires the concurrence of Congress; is a public act of which courts take judicial notice; obliterates the offense itself so that the offender is deemed never to have committed the crime.
- **Pardon:** Granted for common crimes; granted to individual convicts; does not require the concurrence of Congress; is a private act of the Chief Executive which must be pleaded and proved in court; relieves the offender from the penalty but does not erase the fact of commission.

1.3 Prescription of Crimes and Prescription of Penalties (Articles 90–93)

Statutory Periods for Prescription of Crimes (Article 90):

- **Crimes Punishable by Death, Reclusion Perpetua, or Reclusion Temporal:** Prescribe in TWENTY (20) YEARS.
- **Crimes Punishable by Other Afflictive Penalties (Prision Mayor):** Prescribe in FIFTEEN (15) YEARS.

- **Crimes Punishable by Correctional Penalties (except Arresto Mayor):** Prescribe in TEN (10) YEARS.
- **Crimes Punishable by Arresto Mayor:** Prescribe in FIVE (5) YEARS.
- **Crimes of Libel or Similar Defamation:** Prescribe in ONE (1) YEAR.
- **Crimes of Oral Defamation and Slander by Deed:** Prescribe in SIX (6) MONTHS.
- **Light Offenses (Arresto Menor / Minor Infractions):** Prescribe in TWO (2) MONTHS.

Computation and Interruption (Article 91): The period of prescription begins to run from the day on which the crime is discovered by the offended party, the authorities, or their agents. The prescriptive period is interrupted by the filing of the complaint or information with the prosecutor's office (or court), and shall commence to run again when such proceedings terminate without the accused being convicted or acquitted, or are unjustifiably stopped.

Prescription of Penalties (Articles 92 & 93): The period of prescription of penalties begins to run from the date when the convict EVADES the service of his sentence by escaping during the term of his imprisonment. Reclusion Perpetua prescribes in 20 years; other afflictive penalties in 15 years; correctional in 10 years; light penalties in 1 year.

Chapter 2: Partial Extinction of Criminal Liability and GCTA (Articles 94–99)

2.1 Grounds for Partial Extinction (Article 94)

Criminal liability is partially extinguished by: (1) Conditional Pardon; (2) Commutation of Sentence; and (3) Good Conduct Time Allowances (GCTA) earned during confinement.

2.2 Good Conduct Time Allowances (Article 97 as amended by R.A. No. 10592)

Under Republic Act No. 10592, the Good Conduct Time Allowance (GCTA) rates granted to prisoners for good behavior during detention and imprisonment were substantially expanded:

- **1. First Two Years of Confinement:** Deduction of TWENTY (20) DAYS for each month of good behavior.
- **2. Third to Fifth Year of Confinement:** Deduction of TWENTY-THREE (23) DAYS for each month of good behavior.
- **3. Sixth to Tenth Year of Confinement:** Deduction of TWENTY-FIVE (25) DAYS for each month of good behavior.
- **4. Eleventh Year and Successive Years:** Deduction of THIRTY (30) DAYS for each month of good behavior.
- **5. Study, Teaching, or Mentoring Service (Additional Allowance):** Additional deduction of FIFTEEN (15) DAYS for each month of active participation.
- **Special Time Allowance for Loyalty (Art. 98 as amended):** A deduction of ONE-FIFTH (1/5) of the period of sentence if a prisoner evades place of confinement during a calamity/rebellion and gives himself up to authorities within 48 hours; and a deduction of TWO-FIFTHS (2/5) if he chose to stay in place of confinement during such catastrophe.

Chapter 3: Civil Liability Arising from Crimes (Articles 100–113)

3.1 Dual Juridical Nature of Crime and Civil Liability Ex Delicto (Article 100)

Article 100 establishes the fundamental principle: 'Every person criminally liable for a felony is also civilly liable.' A crime is not only a public offense against the State; it is also a private wrong against the victim whose personal rights, physical integrity, property, or honor have been directly injured.

3.2 The Three Components of Civil Liability (Article 104)

Civil liability established under Article 100 includes three distinct forms of reparation:

- **1. Restitution (Restitución - Art. 105):** The restoration of the very thing itself must be made by the court whenever possible, with allowance for any deterioration or diminution of value. Restitution must be made even if the property is found in possession of a third person who acquired it by lawful means, saving the rights of third parties under Article 1505 of the Civil Code.
- **2. Reparation of Damage Caused (Reparación - Art. 106):** The court determines the amount of damage, taking into consideration the fair market value of the property, its price of affection (sentimental value) to the offended party, and the physical damage caused.
- **3. Indemnification for Consequential Damages (Indemnización - Art. 107):** Indemnification includes not only the damages caused to the offended party, but also those suffered by his family or by a third person by reason of the crime. This encompasses: (a) Civil indemnity ex delicto; (b) Actual / compensatory damages (medical, burial expenses, loss of earning capacity); (c) Moral damages for mental anguish and fright; (d) Exemplary / punitive damages; (e) Temperate damages.

3.3 The Definitive Damages Framework under People v. Jugueta (2016 En Banc)

In the landmark En Banc ruling of People v. Jugueta (G.R. No. 202124, April 5, 2016), the Supreme Court established comprehensive, standardized guidelines for awards of civil indemnity, moral damages, and exemplary damages:

- **1. For Heinous Crimes where Death is Prescribed but Reclusion Perpetua is Imposed (RA 9346):** ₱100,000 Civil Indemnity, ₱100,000 Moral Damages, and ₱100,000 Exemplary Damages.
- **2. For Crimes Punishable by Reclusion Perpetua (e.g., Murder, Parricide, Rape):** ₱75,000 Civil Indemnity, ₱75,000 Moral Damages, and ₱75,000 Exemplary Damages.
- **3. For Simple Homicide (punishable by Reclusion Temporal):** ₱50,000 Civil Indemnity and ₱50,000 Moral Damages (₱50,000 Exemplary if aggravating circumstance attended).
- **4. For Frustrated Murder / Parricide:** ₱50,000 Civil Indemnity, ₱50,000 Moral Damages, and ₱50,000 Exemplary Damages.
- **5. For Attempted Murder / Parricide:** ₱25,000 Civil Indemnity, ₱25,000 Moral Damages, and ₱25,000 Exemplary Damages.
- **6. Legal Interest:** All monetary awards earn legal interest of six percent (6%) per annum from the date of finality of judgment until fully paid.

3.4 Subsidiary Civil Liability of Employers, Innkeepers, and Masters (Articles 102–103)

In default of the persons criminally liable, the following are subsidiarily liable for the damages caused:

- **1. Innkeepers, Tavernkeepers, and Householders (Art. 102):** For crimes committed in their establishments by their employees or against guests, when they fail to enforce police regulations.
- **2. Employers, Teachers, and Persons Engaged in Industry (Art. 103):** Employers and business proprietors are subsidiarily liable for felonies committed by their servants, pupils, apprentices, or employees in the discharge of their duties. Requisites: (1) The employer is engaged in some kind of industry; (2) The employee committed the felony in the discharge of his duties; (3) The employee is insolvent and execution against him has been returned unsatisfied.

LANDMARK JURISPRUDENCE ON EXTINCTION AND CIVIL LIABILITY

In *People v. Bayotas* (G.R. No. 102007, 1994 En Banc), the Supreme Court ruled that death of the accused pending appeal of his conviction extinguishes his criminal liability as well as the civil liability based solely on the crime (ex delicto). However, civil liability rooted in independent sources (contracts, torts/quasi-delicts under Arts. 31, 32, 33, 34, 2176 of the Civil Code) may be enforced against the estate in a separate civil action.

In *Inmates of New Bilibid Prison v. De Lima* (G.R. No. 212719, 2019 En Banc), the Court struck down the prospective-only clause of the RA 10592 Implementing Rules, ruling that GCTA credits must apply retroactively to all prisoners in accordance with the pro-reo principle of Article 22.

In *People v. Jugueta* (G.R. No. 202124, 2016 En Banc), the Supreme Court consolidated the historical evolution of damages in Philippine criminal law into a permanent, uniform schedule applicable across the entire judiciary.